

CLEAR TERMS, SET OUT UPFRONT

Service agreement

Between Matia Zoffoli, VAT number, address, trading as Studio Matiz (the "Studio"),
and client, VAT or tax number, address, contact person (the "Client").

1. Subject

The Studio carries out for the Client the work described in the individual accepted quotes (websites, digital menus, automations, digital tools) and, if chosen, the ongoing care in article 4. Every accepted quote forms part of this agreement.

2. How the work goes

- One contact person per side. Requests are made in writing (email or WhatsApp), one at a time where possible.
- The Studio sends a first reply within one working day. The Client replies to requests for material and approval within 3 working days.
- The Studio takes on few projects at a time (at most two build projects open together) to give each the attention it needs.

3. Delivery times, revisions, warranty

- The delivery time in the quote runs from receipt of all the material and access. Delays on the Client's side move the delivery by the same amount.
- Two rounds of revisions on the delivered work are included. Later changes, or changes outside the description, are quoted separately at 50 euro an hour.
- Technical errors (something that does not work as described) are corrected free of charge for 30 days after delivery.

4. Ongoing care

Includes technical updates, security, backups, content changes, replies to requests and a monthly report.

- Settling-in month: the first month is a flat fee of 250 euro, with no cap on hours, for support, research and ideas. Development of new features and graphic redesigns are excluded. At the end of the month the Studio delivers the report with the real hours and the parties agree the level for the following month.
- From the second month, Base level: a fee of 100-150 euro a month with 2 hours of support included. Updates, security and backups do not use up hours.
- Included hours that are not used are lost. Hours beyond the limit cost 50 euro an hour, in blocks of 30 minutes, always communicated before starting.
- New features are not part of the included hours: they are quoted separately.
- The fee is monthly in advance, payable within 5 days of the invoice.

5. Prices, payments, VAT

- Prices are those in the quote and do not change along the way. Any change requested by the Client is communicated and approved before it is carried out.
- In case of a delay of more than 15 days, the Studio may suspend new work and ongoing care, but does not block the website already delivered (article 6).
- VAT: added if due; regime to be confirmed with the accountant .
- Domain and hosting are paid with the Client's payment method, in the Client's account. The Studio does not advance these costs.

6. Ownership of domain, content and data

- Always the Client's: the domain (registered in the Client's name), the content (texts, photos, menus), the data collected and the main accounts. The Studio does not hold them back in any case.
- Management: if the Client asks, the Studio manages them on the Client's behalf (renewals, backups, updates). If the Client prefers to be independent, the Studio hands over the access and a short guide.
- Reuse of components: the Client has a perpetual licence to use the delivered work. The Studio keeps the rights to generic components, tools and method, which it may reuse for other clients, never reusing the Client's content, data or confidential parts. Clause to be reviewed by a professional.
- Reference: the Client authorises the Studio to cite the work (business name and results) on its own website and social media, after the Client's written approval of the text and numbers. If the Client received the launch check-up free of charge: the testimonial and the permission to tell the case are the agreed counterpart.

7. Personal data (GDPR)

- For third-party data processed in the website or tools (customers, members, bookings), the controller is the Client and the Studio is the processor under Art. 28 of Regulation (EU) 2016/679. Appointment deed to be attached, prepared by a professional.
- The Studio uses the data only to carry out the service, protects it with adequate measures and does not pass it to third parties. Service providers (hosting, email, contacts archive) are listed in the Studio's privacy notice link and host the data in the European Economic Area where possible.
- The Studio uses artificial intelligence tools to speed up the work. It does not enter personal data of the Client's end customers into tools that use it for training and always personally reviews the result before delivering it.

8. Liability

- The Studio answers for the work with the diligence of a professional. Overall liability is limited, except in cases of wilful misconduct or gross negligence, to an amount equal to what the Client paid in the preceding 12 months. To be reviewed by a professional.
- The Studio is not liable for interruptions of third-party services (hosting, domain, platforms), but works to restore them. The Client is responsible for the content it provides (texts, photos, usage rights).
- Automations and content produced with the help of artificial intelligence are checked by the Studio, but remain support tools: the Client keeps responsibility for business decisions.

9. Duration and withdrawal

- The agreement applies from signing and for an indefinite period for ongoing care. The settling-in month carries no commitment: the Client may stop at the end of the month without penalty.
- After the settling-in month, 30 days' notice by either party, in writing.
- At the end the Studio hands over all access, files and documentation within 10 days, including in case of withdrawal, and at no cost if the Client is up to date with payments.

10. Confidentiality

Commercial information exchanged remains confidential for the duration of the agreement and for 2 years afterwards.

11. Governing law and jurisdiction

Italian law. For any dispute, an attempt at an amicable settlement; failing that, the courts of Forlì-Cesena / place to be decided. If the Client is a consumer and not a business, the protections provided by law apply: to be verified with a professional.

Place and date: place, date

The Client, name

The Studio, Matia Zoffoli